



KIOWA TRIBE

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OFFICE OF THE LEGISLATURE

KIOWA TRIBE
RESOLUTION NO. KL-CY-2026-017

THE KIOWA FREEDOM FUND ACT OF 2026

At a duly called Legislative Regular Session CXI-(111) of the Legislature of the Kiowa Tribe held this 11th day of July, 2026, the following resolution, was adopted.

WHEREAS, the Kiowa Tribe is a sovereign nation and has been so since time immemorial; and,

WHEREAS, the Tribe exercises full enjoyment of the inherent powers of government, including self-determination and autonomy over internal affairs encompassing Tribe citizens, lands, and resources; and,

WHEREAS, on April 17, 2017, qualified voters of the Tribe ratified the Kiowa Constitution as “the supreme law of the land”; and,

WHEREAS, among the duties of the Kiowa Legislature under Article VI, Section 1 of the Kiowa Constitution are the mandates to monitor the actions of the Tribe government, assess the needs of the Cauigu People, and make laws responsive to same needs; and,

WHEREAS, the Kiowa Legislature is vested with the authority to pass laws and resolutions pursuant to Article VI, Section 6(a) of the Constitution; and,

WHEREAS, the Legislature recognizes a moral obligation to advance reparative futures and transformative justice on behalf of Members of the Tribe, particularly those contending with the legacies and ramifications of structural destabilization and dispossession; and,

WHEREAS, authentic remedies and earnest redress of systemic harm cannot be achieved without measures to sow economic equalization among the most vulnerable of our Tribe population; and,

WHEREAS, the Legislature embraces the ethical duty to build frameworks that support Kiowa youth, especially those who, through no fault of their own, presently face shortfalls in opportunity and access due to historical oversights of the Southern Plains CFR Court; and,

WHEREAS, the Legislature has identified the imperative to develop both short- and long-term policy solutions that will deliver financial assistance to Kiowa children and families burdened by the fallout of specific guardianship orders;

NOW THEREFORE BE IT RESOLVED, that the Legislature hereby adopts the Kiowa Freedom Fund Act of 2026.

CERTIFICATION

The foregoing Resolution KL-CY-2026-017 was duly voted upon by the Legislature on July 11, 2026, at a Legislative Regular Session CXI-(111), with a vote of (5) in favor and (0) opposed, (0) abstaining, and (2) absent, according to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.



Michael Q. Primus II
Michael Q. Primus II
Speaker of the Legislature

LEGISLATIVE RESOLUTION – KL-CY-2026-017

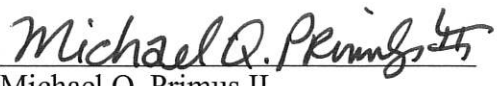
Sponsors: Cole DeLaune, District 4

Co-Sponsors:

LEGISLATORS	YES Hàu	NO Hàu:né	ABSTAIN Háun á	ABSENT Héñgyádàu
Kyle Ataddlety District 1	X			
Michael Q. Primus II District 2	X			
Timothy Satepauhoodle District 3	X			
Cole Kickingbird-DeLaune District 4	X			
Tiya Rosario District 5				X
Ben Wolf District 6				X
Warren Queton District 7	X			

DELIVERY OF THE RESOLUTION AND LAW TO THE CHAIRMAN

Resolution No. KL-CY-2026-017 was presented to the Chairman of the Kiowa Tribe on the 22nd day of July, 2026, pursuant to the Article VI, Section 8(a)(iv) of the Constitution of the Kiowa Tribe, and will become effective after signature by the Chairman or veto override by the Legislature, and as otherwise required by the Constitution.


Michael Q. Primus II
Speaker of the Legislature

CHAIRMAN'S ACTION:

☒ APPROVED

☐ VETO - RETURNED TO LEGISLATURE WITH EXPLANATION:

On this 28th day of July, 2026.



David B. Sullivan
Chairman of the Kiowa Tribe

Presented by the Chairman to the Legislature on the ____ day of _____, 2026.

LEGISLATURE'S ACTION:

Override of Chairman's veto:

☐ YES

☐ NO

LEGISLATIVE OVERRIDE ORDER: KLO-CY-2026-0XX

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1				
Michael Q. Primus II District 2				
Timothy Satepauhoodle District 3				
Cole Kickingbird-DeLaune District 4				
Tiya Rosario District 5				
Ben Wolf District 6				
Warren Queton District 7				

C E R T I F I C A T I O N

The foregoing Legislative Order, KLO-CY-2026-00X was duly voted upon by the Legislature on _____, 2026, at a Legislative Override Order Session with a vote of _____ in favor and _____ opposed, and _____ abstaining, _____ Absent. Pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Q. Primus II
Speaker of the Legislature

Section 1.1 Short Title

Section 1.1 This enactment shall be cited as the Kiowa Freedom Fund Act of 2026.

Section 1.2 These provisions are enacted to provide support through the Kiowa Freedom Fund (“the Fund”) for Members of the Tribe who experience hardship as a result of the historical practices relating to guardianship appointments by the Court of Indian Offenses.

Section 1.3 The Fund shall be administered by the Chief Judge of the Kiowa Trial Court.

Section 1.4 One-hundred and twenty-five thousand dollars (\$125,000) is hereby appropriated from monies received from the U.S. Department of the Treasury via the Local Assistance and Tribal Consistency Fund (LATCF) revenue enhancement program. This appropriation shall be used for the purposes set out in this enactment, which are consistent with the previously approved Annual Budget.

Section 1.5 The Kiowa Trial Court shall identify each ward impacted by the historical practices by the Court of Indian Offenses for the Southern Plains Region guardianship appointments. The Clerk of the Kiowa Trial Court shall notify the Guardian of each person identified of their eligibility to apply for aid pursuant to this enactment, and shall provide the Guardian with an application form, instructions and assistance, if necessary, in completing and filing such form.

Section 1.6 The Trial Court shall prepare an application form, consistent with Section 1.9 below, to be used by the Guardian making the application.

Section 1.7 To receive funds under this law, the Guardian shall:

- 1) file an application form with the Trial Court;
- 2) provide documentation to the Clerk of the Court of enrollment as a Member of the Tribe for themselves or the person or persons for whom they have been appointed Guardian (copies of tribal enrollment cards or verification of citizenship in the Tribe from the Office of Enrollment); and
- 3) provide a written statement of financial hardship caused by, or arising in relation to, the discharge of their duties as a Guardian appointed by the Court of Indian Offenses.

Section 1.8 The Kiowa Trial Court shall consider each application made and shall approve a one-time disbursement of up to \$2,600.00 for each ward ~~where that ward is one~~ the Court determines was impacted by the historical practices by the Court of Indian Offenses for the Southern Plains Region vis-à-vis guardianship appointments. The Court may also approve a disbursement up to \$2,600 for any young adult under the age of 23 who was a ward in a guardianship appointed by the Court of Indian Offenses who remains in the process of completing their secondary education at the time the Guardian submits an application under this law.

Section 1.9 An application form shall contain the following information:

- a. The Kiowa Tribe Roll Number of the Guardian as applicable
- b. The Social Security Number of the Guardian
- c. The name(s) and date(s) of birth of each minor or young adult who meet the definitions set out in Section 1.8 for whom the applicant serves as Guardian
- d. Physical home address
- e. Mailing address (if distinct from physical home address)
- f. Email address (if applicable)
- g. Mobile phone number (if applicable)
- h. Self-attestation of need which details how much funding is needed as much as possible
- i. Signature under oath that information supplied in application is true and correct and that all monies received from the Fund shall be used for or applied to past expenses related to the care and maintenance of the minor children and/or young adult(s) in the guardianship of applicant. Such expenses may include, but shall not be limited to, food, lodging, utilities, medical treatments, transportation, fuel, and/or costs incurred from educational activities.

Section 1.10 The Chief Judge of the Kiowa Trial Court shall meet with each applicant to determine the finalized total amount of funds for which the Guardian is approved. The Trial Court shall verify with the Kiowa Tribe Enrollment Office that the Guardian applicant and/or the minors or young adults in their guardianship are enrolled Members of the Tribe.

Section 1.11 The Kiowa Trial Court shall communicate all final approvals of aid, the amount of which shall be at the discretion of the Chief Judge of the Trial Court within the parameters set forth in this enactment, to the Finance Department of the Tribe. Upon receipt of each approved application, the Deputy Finance Director, or the next senior Finance Department personnel in the absence of a Deputy Finance Director, shall cause a physical check to be prepared within ninety-six (96) hours for physical collection by Trial Court personnel.

Section 1.12 The Kiowa Trial Court shall maintain a record of every application for aid received under this enactment, the date of application, the date same application was approved or rejected, and the amount of monies approved for disbursement.

Section 1.13 The Kiowa Trial Court shall be responsible for communicating with applicants concerning their application, any approvals, partial approvals or rejections and shall coordinate mailing of checks or in-person collection of same checks by applicants.

Section 1.14 Aid shall be made available under this law for One hundred eighty (180) days after this law becomes effective, after which time no further aid shall be approved.

Section 1.15 Any moneys allocated for the Fund which are not expended shall become unappropriated and available for future appropriation Two hundred forty (240) days after this law is effective.

Section 1.16 This law shall be deemed effective as on the earlier of the following dates:

- (a) the day these provisions are signed into law by the Chairman of the Tribe, or
- (b) the expiration of the period of ten (10) calendar days allotted by the Constitution to the Chairman for consideration following presentment, or
- (c) the date a veto override is signed by the Speaker of the Legislature.